June 30, 2020

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John B. Rhodes, Chair and Chief Executive Officer
James S. Alesi, Commissioner
Diane X. Burman, Commissioner
Tracey A. Edwards, Commissioner
John B. Howard, Commissioner

Commissioners,

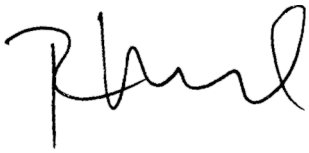
I write as a party in Case 19-G-0678 to express my concern—echoed by numerous other groups and parties therein—that the PSC is in danger of reneging on the duties required of it in this proceeding. Those duties include keeping the public informed about its final decision on National Grid's long-term infrastructure options—a decision that would conclude a months-long ordeal in which thousands have invested both time and effort, all with the understanding that a democratic, transparent process would yield a democratically determined final result. As we enter July with no such decision made, I want to remind the commission of the continued requirement for transparency in this case. To provide the public with anything less—particularly at this late date—would be a betrayal both of the public's trust and of the terms of the settlement.

I also want to remind you that, unlike a rate case, Case 19-G-0678 is implicitly punitive in nature and exists to right the corporate wrongs inflicted on the public by National Grid, whose moratorium, in your words, caused "undue hardship to more than 3,700 existing and new customers." Moreover, it is intended to do this by way of the very public participation, input, and reciprocity that National Grid denied its customers when it unilaterally decided to shut off their gas. Over 8,000 of those customers and other members of the public have filed comments towards that end, to say nothing of the hours spent reading documents and attending public meetings related to it. They deserve continued communication regarding the status of this case, and, ultimately, to have this process seen through to the end.

It is particularly troubling that the PSC's silence is coming as it reopens confidential rate case negotiations with National Grid, whose profits have suffered because of the COVID-19 pandemic. It is not lost on the public that long-term infrastructure is lucrative to utilities, nor that, as this decision has been delayed, construction has continued on the widely opposed MRI Pipeline in North Brooklyn (and without approved funding). It would not be unreasonable for the public to assume that all of these things are related, and that the PSC has decided to ignore both public opinion and climate science in the name of protecting shareholders amid a COVID-related state of exception. The PSC must prove this suspicion wrong. It must honor the terms of the settlement in Case 19-G-0678, beginning with an effort to update the public on the status of the decision.

And please: be wary. The ongoing pandemic must not be used as cover for capitulating to corporate interests at the expense of democratic demands, particularly when those demands concern a public health crisis—climate change—whose impact stands to be far greater than this virus. I trust that you will not abdicate your responsibilities as a regulator in such a way. The public has made its demands perfectly clear: no new fossil fuel infrastructure, both for its sake, the planet's sake, and the sake of your grandchildren. We hope that you will honor your commitment to transparency and democracy in Case 19-G-0678 by seeing it through and delivering on this demand.

Regards,



Robert Wood
350Brooklyn/DSA Ecosocialist Working Group